

REGISTER OF WAGE DETERMINATION UNDER		U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT		EMPLOYMENT STANDARDS ADMINISTRATION
By direction of the Secretary		WAGE AND HOUR DIVISION
of Labor		WASHINGTON D.C. 20210
		Wage Determination No.: CBA-2025-260
Diane Koplewski	Division of	Revision No.: 0
Director	Wage Determinations	Date Of Last Revision: 06/12/2025

State: Maryland

Area: Charles

Employed on NAVFAC contract for Regional Custodial Services for Naval District Washington.

Collective Bargaining Agreement between contractor: NJS Joint Venture LLC, and
union: TRANSPORT WORKERS UNION OF AMERICA Local Local525 AFL-CIO, effective 10/01/2024 through 09/30/2027.

In accordance with Section 2(a) and 4(c) of the Service Contract Act, as amended,
employees employed by the contractor(s) in performing services covered by the
Collective Bargaining Agreement(s) are to be paid wage rates and fringe benefits
set forth in the current collective bargaining agreement and modified extension
agreement(s).

Agreement between

NJS Joint Venture LLC.

AND

TRANSPORT WORKERS UNION OF AMERICA

LOCAL 525, AFL-CIO

EFFECTIVE October 1st, 2024

EXPIRATION: September 30th, 2027

Table of Contents

AGREEMENT

ARTICLE I PURPOSE OF AGREEMENT

ARTICLE II RECOGNITION

ARTICLE III MILITARY SERVICE

ARTICLE IV UNION MEMBERSHIP AND CHECK-OFF

ARTICLE V NON-DISCRIMINATION

ARTICLE VI MANAGEMENT'S RIGHTS

ARTICLE VII FUNERAL LEAVE

ARTICLE VIII HOLIDAYS

ARTICLE IX REPORTING TIME

ARTICLE X SENIORITY AND TRANSFERS

ARTICLE XI VACATIONS

ARTICLE XII SETTLEMENT OF DISPUTES

ARTICLE XIII ARBITRATION

ARTICLE XIV NO STRIKE-NO LOCKOUT

ARTICLE XV BULLETIN BOARDS

ARTICLE XVI SAVINGS CLAUSE

ARTICLE XVII JURY DUTY

ARTICLE XVIII WAGES

ARTICLE XIX WORK WEEK

ARTICLE XX OVERTIME COMPENSATION

ARTICLE XXI LEAVE OF ABSENCE

ARTICLE XXII WORK CLOTHING AND TOOLS

ARTICLE XXIII MEAL PERIODS

ARTICLE XXIV ABSENCE FROM DUTY

ARTICLE XXV MISCELLANEOUS PAY PROVISIONS

ARTICLE XXVI LIFE INSURANCE AND HOSPITALIZATION

ARTICLE XXVII SICK LEAVE PROVISION

ARTICLE XXVIII RETIREMENT

ARTICLE XXIX SAFETY

ARTICLE XXX GOVERNMENT REQUIREMENTS

ARTICLE XXXI DISCIPLINE

ADDENDUM "A" WAGE RATES

AGREEMENT

THIS AGREEMENT, entered into this 11th day of October, 2024, between NJS JOINT VENTURE LLC, its agents, assigns, and/or successors, (hereinafter referred to as the Company), and the TRANSPORT WORKERS UNION OF AMERICA, AFL-CIO, GUIDED MISSILE LOCAL 525, (hereinafter referred to as the Union).

ARTICLE I PURPOSE OF AGREEMENT

The general purpose of this Agreement is to establish wages, hours and other conditions of employment to mutually promote to the fullest extent possible the safety and welfare of the employees, economy of operations, quality and quantity of productions, cleanliness of plant and protection of property. It is also the intent of this Agreement to promote and insure harmonious relations, cooperation, and understanding between the Company and its employees and to that end, the company pledges itself to render its employees fair, considerate and courteous treatment, and the employees in turn pledge themselves to render the company loyal, courteous, and efficient service.

ARTICLE II RECOGNITION

The Company hereby recognized the Union as the exclusive bargaining agent for its employees in the bargaining unit described as: all maintenance employees employed by the employer at the Naval Ordnance Station, Indian Head, Maryland, excluding guards, supervisors, and managerial employees, as defined in the National Labor Relations Act, and further excluding external window washers.

ARTICLE III MILITARY SERVICE

An employee who is a member of the military or reserve will be granted all leave and other rights provided by law under USERRA (Uniformed Services Employment and Reemployment Rights Act).

ARTICLE IV UNION MEMBERSHIP AND CHECK-OFF

All employees covered by this Agreement shall thirty (30) days from the date of employment, or thirty (30) days from the date of this Agreement, whichever is the later, as a condition of employment, pay initiation fees and membership dues uniformly required as a condition of acquiring or retaining membership, or alternatively a sum of money determined to constitute a representation fee as defined by the United States Supreme Court in *NLRB v. General Motors Corporation*, 373 U.S. 734 (1963); and *Beck v. Communications Workers of America*, 487 U.S. 735 (1988).

The Company will deduct and pay to the Union the regular amount of initiation fees and union membership dues established by the Union Constitution or By-Laws, or alternatively, the representation fee, from the pay of each employee covered by this Agreement who voluntarily authorizes and directs the company to make such deductions. Each such authorization shall be in writing in the form provided by the Union and shall be governed by the provisions thereof and of the National Labor Relations Act, as amended. The Union shall notify the Company in writing who the payee of checks for such deductions shall be, and the name and address of the person to whom such checks are to be sent. The Company shall be entitled to rely on such notices until receipt of a written modification thereof. The Company shall transmit to the union not later than the tenth (10th) day of each applicable month in which the deductions are made, a statement showing the name of

each employee and the amount paid on his behalf. The written deduction authorization shall be provided by the Union.

The failure of any employee, at the required time, to become a member of the Union or, alternatively, pay a sum of money determined to constitute a representation fee, shall obligate the Company, upon written notice from the Union, to forthwith discharge such employee.

The Union shall indemnify the Company and save it harmless from any claim, loss, damage, cost or expense, including, but not limited to reasonable attorney fees, arising out of the discharge of any employee and/or deductions made pursuant to this Article, and the company shall not be required to make any investigation of, but shall be entitled to rely on any representation made by the Union with respect to the discharge of any employee for failure to join the union, to maintain union membership pursuant to this Article and/or deductions made pursuant to a check-off submitted to the Company by the Union pursuant to this Article, or for failure to pay representation fees. In the event it is determined by any proper judicial or quasi judicial forum that any employee was improperly discharged or a deduction (s) improperly made by the Company acting on the Union's advice, the Union will indemnify and hold the company harmless from claims, loss, damage, cost or expense, including but not limited to reasonable attorney fees.

ARTICLE V NON-DISCRIMINATION

It is agreed by the Company and the Union that there shall be no unlawful discrimination by the Company or the Union against any employee by reason of race, sex, creed, religion, color, age, disability, national origin, sexual orientation or other class protected by law, or because of involvement in or refraining from participating in union activities.

ARTICLE VI MANAGEMENT'S RIGHTS

The management of the Company's plant and the direction of its working forces, including, but not limited to, the rights to determine whether the plant or any part thereof operates, to establish new jobs, abolish or change existing jobs, increase or decrease the number of jobs and employees, change materials, processes, products, equipment and operations, shall be vested exclusively in the Company. The Company shall be the sole judge of applicants of employment, their qualifications and physical fitness. Subject to the provisions of this Agreement, the Company shall have the right to schedule and assign work to be performed and the right to hire or rehire employees, discipline or discharge for any cause not in violation of this Agreement, transfer or layoff of employees because of lack of work or other legitimate reasons, to determine the hours per day or week that operations shall be carried on, to establish day and night shifts, to set and/or modify the hours of work and the number of employees for such shifts, to make and enforce substance abuse and drug testing policies, safety rules, work rules, standards of conduct and similar policies governing the conduct of such employees. The Company will provide copies of such rules and policies to the Union. The Company reserves and retains in full and completely any and all management rights, prerogatives and privileges except as specifically limited by this Agreement, or by applicable Federal, State, or local Laws. The list of management rights set forth in this Article are not intended to be nor shall they be construed as a restriction or waiver of any rights of the Company not listed and not specifically surrendered in this Agreement, whether or not such rights have been exercised in the past. The Parties acknowledge and agree that supervisors can perform bargaining unit work in limited circumstances and without the intent to replace bargaining unit employees, such as to train

employees, to address call-outs and staffing-related issues that are not able to be addressed by on-call employees, or in emergency situations.

ARTICLE VII FUNERAL LEAVE

Each employee shall be granted three (3) days off with pay to attend the funeral of a member of the employee's immediate family. Should such funeral take place more than 300 miles from the Naval Ordinance Station, the employee may have one (1) additional day off with pay, for the purpose of attending such funeral. Employees may request additional unpaid leave, and such leave will be granted at the sole discretion of the Company. The Employer reserves the right to require proof of deceased, relation to deceased, attendance at funeral, and, if applicable, that the funeral was more than 300 miles from the Naval Ordinance Station.

Immediate family includes spouse, parents, brother, sister, mother-in-law, father-in-law, grandparents and children. Any funeral leave shall not be paid during holidays, vacation, Saturday or Sunday. To be entitled to funeral pay, employees may be required to prove to the Company proof of death and proof of relationship.

The number of hours per day for which the employee shall be entitled to payment shall be equal to the number of hours per day for which the employee would otherwise have been scheduled to work.

ARTICLE VIII HOLIDAYS

SECTION 1. The following days shall be observed as paid holidays:

Washington's Birthday	Christmas Day
New Year's Day	<u>Juneteenth</u>
Memorial Day	Labor Day
Independence Day	Columbus Day
Martin L. King's Birthday	Veteran's Day
Thanksgiving Day	

All future holidays declared as official federal holidays by the United States Congress or by Executive Proclamation provided the Contracting Officer at the site confirms that the Employer is not obligated to perform services on that day or that only a skeleton crew is needed.

SECTION 2. The Company agrees to arrange the work schedule for local and general election days so that all employees shall have an opportunity to vote.

SECTION 3. In order to be eligible for a holiday, employees in question must have worked the last scheduled working day immediately before and after the holiday, unless his absence is due to on the job injury, provable sickness or excused absence.

SECTION 4. Except for employees regularly scheduled for weekend and holiday work, an employee required to work on anyone of the holidays listed above shall be paid at one and one-half times their regular rate of pay for all hours worked on the holiday. This pay is in addition to the holiday pay above provided.

SECTION 5. If a holiday falls either on a Sunday or Saturday, the Company will observe the same substitute holiday observed by the Contracting Officer.

SECTION 6. If a holiday falls on an employee's day off, the Company at its discretion will pay holiday pay for that day or will direct the employee to observe the holiday on the day preceding or the day following the scheduled day off. If employee is on vacation, he will be given an additional day for the holiday.

ARTICLE IX REPORTING TIME

SECTION 1. Any employee required to report to work other than his/her regular schedule, and finding no work available to perform, shall receive four (4) hours pay at the applicable rate or his/her regular day's pay, whichever is less.

ARTICLE X SENIORITY AND TRANSFERS

SECTION 1. The employee's length of service shall be computed from the date on which he is hired by the Company, or his date of employment at the Naval Ordinance Station in a classification covered by this Agreement, whichever is longer. In case of promotion, transfers to jobs when a permanent vacancy occurs, seniority, ability, and qualifications shall be considered. The Company shall establish reasonable minimum qualifications which shall be applied to applicants equally.

SECTION 2. New employees regardless of classification shall be considered on probation for the first ninety (90) days of employment. If the Company finds that any probationary employee does not possess the necessary qualifications, the Company will be under no obligation to re-employ any employee who is discharged or laid off during this probationary period. Employees who are disciplined or terminated during their probationary period for any reason may not challenge their discipline or dismissal through the Settlement of Disputes (Article XII) or Arbitration (Article XIII) provisions.

SECTION 3. If a reduction in force is necessary, the junior employee or employees in the classification performing the type of work being reduced will bump to positions held by less senior employees to the extent they are qualified to fill a new assignment or laid off.

SECTION 4. The Company will not hire new workers until all workers with seniority rights who have been laid off and who are qualified to do the available work have been offered employment as provided herein. The Company will provide a seniority list of all employees upon reasonable request.

SECTION 5. A worker shall lose his seniority rights for the following reasons: (1) he or she quits the job; (2) he or she is discharged for cause; (3) he or she is laid off continuously for a period of Twelve (12) months or the employee's length of service as of layoff date, whichever is shorter; (4) he or she fails to report to work when recalled from layoff within five (5) working days after recall; unless a satisfactory reason is given therefore (workers shall inform the Company in writing of any change of address if they want to be considered for reemployment); he or she is absent for five (5) working days, unless excused by the Company by reason of illness or other excused disability or other reasonable cause.

ARTICLE XI VACATIONS

All employees covered hereunder shall receive the following vacation benefits:

SECTION 1. Vacation is earned on each employee's respective seniority date ("qualifying date"). There is no accrual or vesting of vacation prior to their respective seniority date. All employees

must use their vacation days/ hours in the corresponding calendar year based on each of their respective seniority dates. Each employee's vacation year commences on their seniority date (month and day) and ends the next year, one day prior to their seniority date (month and day). There will be no pay out of or carry over of vacation hours to the next year.

SECTION 2. Any vacation pay due to an employee shall be paid on the next regularly scheduled pay period following the use of vacation. Employees shall receive paid vacation as identified in Sections 3 through 7. Vacation shall be earned by On-Call Employees (OCE's) on a pro rata basis compared to a full-time (35 hour/week) employee. Employees who work an irregular schedule of weekly hours, (OCEs) which is dependent upon workload (OCE's will cover full-time employees in the case of vacation, sick, medical leave, jury duty, and other absence, as agreed to by the signatories to the agreement), their vacation pay shall be configured on the basis of the hours worked each week in the previous twelve (12) months of employment.

SECTION 3. All employees who have been continuously in the company's employ for a period of less than one (1) year but more than 6 months shall be entitled to one (1) day vacation with pay equivalent to their average non-overtime daily pay for the one (1) week next preceding their vacation, for each five (5) consecutive weeks of employment prior to qualifying date.

SECTION 4. All employees who have been continuously in the Company's employ for a period of one (1) year shall be entitled to two (2) weeks' vacation with pay equivalent to their average non-overtime pay.

SECTION 5. All employees who have been continuously in the Company's employ for a period of five (5) years shall be entitled to three (3) weeks' pay equivalent to their average non-overtime pay.

SECTION 6. All employees who have been continuously in the Company's employ for a period of fifteen (15) years shall be entitled to four (4) weeks' vacation with pay equivalent to their average non-overtime pay.

SECTION 7. All employees who have been continuously in the Company's employ for a period of twenty (20) years shall be entitled to five (5) weeks' vacation with pay equivalent to their average weekly non-overtime pay.

SECTION 8. Employee's vacation schedules shall be determined by the Company. Employees must submit vacation requests to their site supervisor at least thirty (30) days in advance to date requested. This thirty (30) day period allows for the site supervisor to review the upcoming month's schedule. Where possible, the site supervisor will make necessary scheduling changes to accommodate the requested vacation period. If the requested dates are not viable, the site supervisor will alert the employee and together they will reach an agreement of viable vacation dates. Once the employee submits the agreed upon vacation request, the site supervisor in conjunction with the corporate office must give their signed approval before an employee's vacation schedule is deemed accepted.

SECTION 9. An employee forfeits all vacation pay or privileges if prior to his/her taking vacation he/she quits without giving the Company two (2) weeks written notice of his/her intention to quit. All vacation shall be used on or before the pay period covering each employee's respective seniority date. There will be no carry over of vacation days to the next year. Unused vacation will not be paid out. Employees are encouraged to utilize their vacation time for its intended purpose throughout the year.

ARTICLE XII SETTLEMENT OF DISPUTES

SECTION 1. A grievance is defined as a dispute (including discharge), between the Company and its employees or between the Company and the Union over the application, interpretation or alleged violation of a provision of this Agreement, (except violations or alleged violations of Article XIV hereof).

SECTION 2. No employee or steward shall be permitted to leave the job for the purpose of investigating a grievance, unless he obtains permission from his Supervisor, which permission shall not be unreasonably withheld if it is felt by his Supervisor that the Steward's immediate intercession will cause the problem from becoming more serious.

SECTION 3 Should any employee have any grievance, an earnest effort shall be made to adjust such grievance immediately in the following manner:

Step 1. Within seven (7) days after the occurrence of the thing or event on account of which the employee shall feel aggrieved, the employee and/or his steward shall reduce the grievance to writing and serve a copy thereof upon the employee's shift supervisor and must simultaneously email a copy to the Company's Corporate Human Resources Director. Participating in Step 1 may be the aggrieved employee, his steward, and shift supervisor, or others deemed necessary by the Company or Union. If the employee and/or his steward do not serve a copy of the grievance within the seven (7) day period, or fail to meet any other deadline in this Article, the grievance will be deemed to have been waived.

If the supervisor does not respond to the grievance within seven (7) calendar days of being served with the grievance, the grievance will be deemed to have been denied.

In the event a settlement is reached in Step 1, it shall be reduced to writing and signed by the parties.

Step 2. Within seven (7) calendar days after the denial of the grievance at Step 1 or within seven (7) calendar days after the date on which the supervisor's response was due, the employee and/or his steward may present the written grievance to the project manager and simultaneously email a copy to the Company's Corporate Human Resources Director. If the employee and/or his steward do not timely serve a copy of the grievance, the grievance shall be deemed to have been waived.

The project manager will hold a meeting within seven (7) calendar days after being served with the grievance. Those participating in the meeting may be the same as in Step 1, and in addition thereto, the Union President or his/her designee, International Representative and the Project Manager or other Company Representatives. In the event a settlement is reached in Step 2, it shall be reduced to writing and signed by the Parties. If the grievance is denied at the meeting or if the meeting does not take place, the grievance can be pursued to Arbitration under Article XIII.

SECTION 4. An accredited International Representative of the Union who believes that any provision of this Agreement has not been or is not being properly applied or interpreted, and which has not yet become the subject of an actual grievance, shall have the right within seven (7) days after such alleged occurrence to protest such violation in writing to the other party, who shall evaluate such protest and render a decision in writing within fifteen (15) days. Should the protest not be served within said seven (7) day period, the grievance shall be deemed waived, or should the Company official not respond within fifteen (15) days, the grievance shall be deemed denied.

SECTION 5. Any agreement to extend any of the time limits set forth in this Article must be in writing.

ARTICLE XIII ARBITRATION

SECTION 1. If adjustment satisfactory to the aggrieved employee or employees has not been reached in the Steps set forth in Article XII, the Union may request arbitration by serving written notice on the Company within five (5) calendar days (120 hours) after the date of and time, as set forth in Article XII for the final meeting described in Step 2 or the response provided in Section 4.

SECTION 2. (a) If the parties are unable to mutually agree on an impartial arbitrator within ten (10) days of the service of written notice of intention to arbitrate, either party may request the Federal Mediation and Conciliation Service to submit to it a panel of seven (7) arbitrators. The Union shall strike the first name, notifying the Company of such action, and each party in turn then striking one name until only one name remains who shall be designated as the impartial arbitrator. Either party shall have the right to request a second panel before the arbitrator is chosen provided the party making such requests pays any applicable costs for obtaining a new panel.

(b) It is agreed that the procedures herein provided for settling disputes by arbitration shall be used to the exclusion of any other means available to the parties who execute this Agreement, it being understood that all arbitration decisions rendered under the terms of this contract are final and binding on both parties and fully enforceable in any court of competent jurisdiction. Any rights or remedies otherwise available to the parties to this contract are hereby expressly waived.

(c) The arbitrator shall not have the power to add to or to subtract from this Agreement by his interpretation thereof. The Arbitrator shall not be able to address the merits of the grievance if the grievance was waived in Article XII.

(d) The cost of arbitration shall be borne equally by the parties.

(e) The following managerial prerogatives are not subject to arbitration; all management rights and prerogatives reserved to management by Article VI of this contract, and violations of Article XIV hereof, and the dismissal of probationary employees.

SECTION 3. Any agreement to extend any of the time limits set forth in this Article must be in writing.

ARTICLE XIV NO STRIKE-NO LOCKOUT

The Employer agrees not to cause, permit, or engage in any lockout of any employee or group of employees during the term of this Agreement. The Union agrees that neither it, nor the employees it represents, covered by this Agreement will, during the term of this Agreement, cause, permit, or take part in any strike, including sympathy strike, picketing, slow-down, sit-down or other work action. It shall be a violation of this Agreement, and it shall be cause for discharge if an employee engages in any such activity.

ARTICLE XV BULLETIN BOARDS

SECTION 1. Subject to government permission, the Company agrees to place a bulletin board in a conspicuous place in the office of the Company for use of the Union in posting union notices relating to union meetings, elections, social, recreational and educational activities.

ARTICLE XVI SAVINGS CLAUSE

SECTION 1. It is agreed that this instrument contains the full and complete agreement between the Company and the Union. Any modifications or amendments shall be void and of no force and effect unless reduced to writing and approved by Signatories hereto or their successors, administrators, executors, and assigns. If any part of this agreement is rendered or declared invalid by reason of any existing or subsequently enacted legislation, valid Government regulation or order, or by decree of a court of competent jurisdictions, the invalidation of such parts of this Agreement shall not affect the remaining parts thereof and shall continue in full force and effect.

ARTICLE XVII JURY DUTY

Employees who serve as jurors shall receive, for each such day on which they would otherwise have worked their regular straight time rate less the fee received for jury services. An employee who is called to jury duty must provide proof of service and payment from the court.

ARTICLE XVIII WAGES

The schedule of wages herein shall be those set forth in Addendum "A" attached hereto and made part thereof.

ARTICLE XIX WORK WEEK

SECTION 1. The work day shall consist of twenty-four (24) hour period beginning at 8:00 AM. The Company will attempt to provide the majority of the employees with a seven (7) hour work day.

SECTION 2. The payroll week is 12:00 A.M. Sunday and ends at 11:59 P.M. Saturday. Pay periods shall be no less than semi-monthly, and the regular weekly work schedule will consist of five (5) working days.

SECTION 3. Each employee shall be scheduled so as normally to be off duty the last two (2) consecutive days of his/her work week.

SECTION 4. When employees hereunder work more than eight (8) hours in any twenty-four (24) hour period as a result of rotation of shifts, such employees shall receive only straight time for the second eight (8) hours or portion thereof worked during such twenty-four (24) hour period.

SECTION 5. Changes in hours or assignments to shifts may be made whenever necessary. Whenever possible, five (5) day notice shall be given in advance of such changes.

SECTION 6. In the establishment or changing of the starting time for the commencement of shifts, the Company shall consider among other items, the desires of the employees involved.

SECTION 7: The Company will make a reasonable effort to staff a minimum of seven (7) employees who will typically work a normal full time work schedule of at least seven (7) hours per day. If government staffing requirements or business needs change to the extent that renders this not feasible, the Company will make reasonable efforts to provide advance notice of such change to the Union and agrees to meet with the Union to discuss the effects of this change on the employees. The Union shall have the right to grieve whether the business or government reasons for reducing staff levels is reasonable. Any grievance settlement or arbitration award shall have only prospective application and the arbitrator shall not have the authority to award back pay.

The Company will make reasonable efforts to arrange schedules to provide as many employees as practical with full time hours. All schedules shall be offered by seniority with the senior qualified

employee selecting their desired hours per week and proceeding until the least senior employee takes the last remaining schedule.

SECTION 8: When practicable and at the Company's discretion, the Company shall permit an employee to take one (1) 10 minute break per day.

ARTICLE XX OVERTIME COMPENSATION

SECTION 1. No overtime shall be compensated for unless work is performed at the direction of a Supervisor.

SECTION 2. Time worked in excess of eight (8) hours on any work day, exclusive of meal periods, or time worked in excess of forty (40) hours in any work week, exclusive of meal periods and daily overtime, shall be considered overtime, and shall be paid at the rate of time and one-half with a minimum of one (1) hour overtime. Shift differentials shall not be computed in the calculation of overtime rates and overtime shall not be pyramided.

SECTION 3. Overtime work shall be distributed among the employees qualified to perform the work necessitating overtime as equitably as practicable.

SECTION 4. An employee working overtime shall not be required to work more than two (2) hours continuously after the regular work period without being paid a meal allowance of two dollars (\$2.00) and if feasible the employee shall be given a meal period.

SECTION 5. The Company will make every reasonable effort consistent with its operating requirements to give affected employees two (2) hours' notice when overtime work is required.

SECTION 6. Any employee notified by the Company to report for work on a day on which a hurricane occurs or is forecast, shall receive a minimum of four (4) hours pay if he reports for work; radio, television or internet notification given by the Company or the government at least two (2) hours prior to the regular starting time of their shift not to report shall be presumed conclusively to have been received by all employees affected by such notice who thereafter reports shall not be entitled to pay therefore.

SECTION 7. When employees hereunder work more than eight (8) hours in any twenty-four (24) hour period as a result of rotation of shifts, such employees shall receive only straight time for the second eight (8) hour shift.

ARTICLE XXI LEAVE OF ABSENCE

SECTION 1. Unless otherwise required by law, a leave of absence may be granted at the discretion of the Company. Upon approval of the Company, a leave of absence up to ninety (90) days or as otherwise required by applicable law, may be granted an employee. During such leave, the employee's seniority shall accumulate.

SECTION 2. If such leave under Section 1 above is extended by the Company, the employee will retain, but will not accrue seniority, except that seniority shall continue to accrue on leave for union business. An employee accepting gainful employment while on leave of absence, except as specifically approved in writing by the Company, automatically terminates employment with the Company.

SECTION 3. All provisions of this Article shall be applied in the manner consistent with Family and Medical Leave Act of 1993. Eligible employees will be granted up to twelve (12) weeks of unpaid leave for their own serious illness, for the birth or adoption of a child, or the care of a

seriously ill child, spouse or parent. To be eligible, the employee must have been employed for one (1) year and worked a minimum of 1,250 hours in the preceding twelve (12) months. Information concerning leave under the FMLA, as well as additional requirements, is available from the Project Manager or the Director of Human Resources. Seniority will continue to accrue during any such leave of absence.

SECTION 4. Time spent on leave of absence shall not count for vacation, sick leave or pay review.

SECTION 5. Employees given leave of absence and assigned to affiliate or subsidiary companies shall retain seniority accrued in classifications under this Agreement for the duration of such assignments if within thirty (30) days of the termination of such assignments, they apply for reinstatement with the Company.

SECTION 6. Notwithstanding the other provisions of this Agreement, time spent on leave of absence occasioned by an industrial illness or industrial injury, shall not affect the employee's wage review period to the extent that such wage review is automatic. This understanding shall not constitute a waiver of other established requirements for purposes of classification. Time spent on medical leave of absence shall be considered length of service for the purpose of determining an employee's eligibility for vacation under Article XI.

ARTICLE XXII WORK CLOTHING AND TOOLS

SECTION 1. Employees may be required to wear work clothing that is reasonably suitable and safe for the type of work they are assigned.

SECTION 2. Where employees are required by the Company to wear standard company coveralls or specialized work clothing, such clothing shall be furnished by the Company and laundered by the employee.

ARTICLE XXIII MEAL PERIODS

SECTION 1. Meal periods shall be unpaid and shall not be less than thirty (30) minutes, or more than one (1) hour as designated by the Company, except when varied by Agreement between the parties.

SECTION 2. Meal periods shall be scheduled not earlier than three (3) hours after commencement of work and not later than five (5) hours after commencement of work.

ARTICLE XXIV ABSENCE FROM DUTY

SECTION 1. An employee hereunder shall not be absent from duty without prior permission in writing, except for reason of sickness, injury or justifiable cause beyond the control of the employee.

SECTION 2. An employee hereunder who is prevented from reporting for duty by reason of sickness, injury or other justifiable cause beyond the control of the employee, shall promptly notify the Company office of his/her inability to report for work two hours before his/her shift starts, giving the reason for his/her absence. Such notice will not be considered if given past the employee's regularly scheduled starting time, except when prevented by unforeseen circumstances or personal emergency. In the event of continued absence, weekly (or more frequently if reasonably requested by the Company) notice thereof shall be given to the Company. Failure to provide required notice will result in disciplinary action and in the forfeiture of sick leave in an amount equal to the time the employee was absent. Upon reasonable request, the Company reserves the right to require a physician's statement for absence of any period of time due to illness or injury and/or to require the employee to be examined by a Company-appointed physician at the Company's expense. An

employee who does not, upon reasonable request, provide medical certification that he/she is able to return to work, if required or requested under this Article, will not be permitted to return to work.

ARTICLE XXV MISCELLANEOUS PAY PROVISIONS

SECTION 1. An employee assigned to a shift that begins at or after 3:00 PM and before 6:00 AM shall receive a shift differential of twenty-cents (\$.20) per hour.

SECTION 2. An employee shall receive the shift differential applicable to the shift to which he is regularly assigned for all work performed while he is so assigned, including overtime.

SECTION 3. Employees asked to utilize their personal vehicles for business purposes shall be paid at the applicable IRS dictated rate. However, if the company has provided an alternative, and if the employee has declined the company's alternative, of being escorted by the site supervisor for example, then they are not eligible for reimbursement. In addition, to receive reimbursement employees must maintain a verifiable and accurate log of mileage use, which must be submitted to supervisor for inspection and approval. Any mileage which does not directly pertain to business purposes, for example if the employee leaves the site during their lunch period, or any other personal use, is not eligible for reimbursement.

SECTION 4. The Company shall provide the option Automatic payroll deposit for all employees by April 1st, 2020.

ARTICLE XXVI LIFE INSURANCE AND HOSPITALIZATION

Employees shall be eligible to participate in their employer's health and welfare cafeteria plans (either J&J Worldwide Services or Nugate Group LLC 's plan, depending on who their employer is), subject to the terms and conditions of such plans. The Employer agrees to contribute toward the premium payment of such insurance in the amount of five dollars and sixty-two cents (\$5.62) per compensated hour per employee. Contributions will be made and benefits provided on an individual employee, not an average cost, basis.

If the Employer's contribution equals less than the total premium amount(s) owed for insurance for an employee, that employee shall be responsible for paying the difference through a payroll deduction. If the Employer's contribution equals more than the total premium amount(s) owed for an employee, such overages, at the sole discretion of the Employer, shall be allocated to cash payments each pay period or that employee's 401(k) plan with the Employer, subject to the terms and conditions of such plans.

Employees may opt out of certain benefits of the Employer's health and welfare plans to the extent permitted by such plans and applicable law. However, the Employer retains the right to allocate the \$5.62 per compensated hour per employee to benefits, with no cash payments to employees. Employees must enroll for health and welfare benefits during open enrollment or other qualifying events pursuant to the terms of the Health & Welfare Plan and applicable law. The Parties recognize that the Employer retains the unilateral right to modify, change or otherwise amend its Health and Welfare plan, including but not limited to, plan providers, the types of coverage offered, the terms and conditions of the plan, and the premium payments. Upon the Union's request, the Employer agrees to offer the Union the opportunity to discuss the effects on bargaining unit employees of any material changes to the Health and Welfare Plan.

Employees may opt-out of the Union's health insurance plan by providing written notice to the Employer, in the form required by the employer, during open enrollment. For any employees who opt out of the health insurance plan, the Employer will allocate the H&W of contribution of \$5.62 per compensated hour under this Agreement to the employee's 401(k) or as cash payments each pay period at the sole discretion of the Employer.

ARTICLE XXVII SICK LEAVE PROVISION

SECTION 1. Employees (shall accrue one (1) day of sick leave for each month of service from the date of hire. This means that sick hours are vested and available for use after the end of each month. For example, sick hours earned during the month of October, are available for use as of November 1st. One day of sick leave is equivalent to the number of hours an employee regularly works. For employees who work an irregular schedule of weekly hours (OCE's) which is dependent upon workload, sick leave shall be figured on the basis of the hours worked each week (pro rata basis) in the previous twelve (12) months of employment.

SECTION 2. At the site supervisor's discretion, they may request to utilize OCEs to cover FT employees' absences in the case of vacation, sick, medical leave, jury duty, and other absence, as agreed to by signatories to this agreement.

SECTION 3. An employee may use paid sick leave for an absence resulting from the following:

- The Employee's own physical or mental illness, injury, or medical condition;
- Obtaining diagnosis care or preventative care from a health care provider by the Employee;
- Caring for the Employee's family member with a physical or mental illness, injury, or medical condition or for obtaining diagnosis care or preventative care from a health care provider by the family member, or the family member is otherwise in need of care;
- Domestic violence, sexual assault, or stalking, where the Employee or a family member is a victim, including to obtain counseling, seek relocation, seek assistance from a victim services organization, or take legal action.

For purposes of this section, "family member" shall include the Employee's child, parent, spouse, domestic partner, or any other individual related by blood or affinity whose close association with the Employee is the equivalent of a family relationship.

SECTION 4. Upon termination, each employee shall be paid in one lump sum all of his/her unused sick leave up to 12 days, provided that in the event of a voluntary quit, the employees gives the Company two (2) weeks written notice of his /her intention to quit.

SECTION 5. The Parties acknowledge that Executive Order 13706 requires that employers to allow up to 56 hours of unused sick leave to carryover from one year to the next. Since this Agreement provides sick leave in number of days, rather than number of hours, the Union and Employer agree that up to a maximum of eight (8) unused sick days may be carried over from one year to next depending on the number of hours an employee regular works. The actual number of days carried over will be determined by dividing 56 by the number of hours an employee typically works in a day. For example, if an employee regularly works seven (7) hours a day, the employee may carry over up to eight (8) days of unused sick leave. An employee who regularly works eight (8) hours a day may carry over up to seven (7) days of unused sick leave. Employees may not use more than 12 days of sick leave in any anniversary year. All other accrued sick days must be used within the calendar year. There will be **NO** payout of sick days year to year. The only exception is in the contractor's final month of the contract. The accrued sick day for the final year's final month will be paid out since the employees would otherwise not have the chance to utilize it.

SECTION 6.

Sick leave may be used in a minimum of one (1) hour increments. Employees will receive regular pay and benefits when using paid sick leave, but Employees will not continue to earn additional paid sick leave during that time. If the need for leave is for preventative care or is otherwise foreseeable, the Employee is encouraged to make reasonable efforts to schedule absences so as not to unduly disrupt operations. When an Employee wants to use accrued paid sick leave and the reason for the absence is foreseeable, the Employee must request the leave at least 7 calendar days in advance of the absence. When the need for the absence is not foreseeable, Employees must request to use accrued paid sick leave as soon as practicable, which in most cases should be at least 2 hours before the start of the Employee's shift. If an Employee with accrued paid sick leave takes leave under the Family and Medical Leave Act policy, all accrued paid sick leave must be used before leave is unpaid. Paid sick leave will run concurrently with Family and Medical Leave. When an Employee is absent for 3 or more consecutive full days, the employee must provide certification or documentation from a health care provider. Engaging in fraud in connection with paid sick leave, personal leave, and/or obtaining paid sick leave under false pretenses may result in discipline up to and including termination of employment.

.

ARTICLE XXVIII RETIREMENT

SECTION 1. The Company agrees to pay on behalf of each employee an amount as outlined in Addendum "A" per compensated hour into a money accumulation Retirement 401k Plan which

will provide for purchase of a guaranteed annuity. The plan will provide immediate vesting provisions. Monies can only be withdrawn upon termination or retirement.

ARTICLE XXIX SAFETY

SECTION 1. The Company and the Union agree that work safety is important. In the event an employee has safety concerns, the employee may bring them to the Company and such concerns will be given prompt consideration.

SECTION 2. Employees, who work in hazardous areas as recognized by the Navy, shall receive fifteen cents (\$.15) per hour above their hourly rate of pay.

ARTICLE XXX GOVERNMENT REQUIREMENTS

SECTION 1. The Union agrees to cooperate with the Company in all matters required by the Government, and the Union recognizes that the terms and conditions of the Agreement are subject to certain priorities which the Government may exercise. The Union agrees that any actions taken by the Company pursuant to a requirement of the Government or at the direction of the Government shall not constitute a breach of this Agreement. Nothing in this Agreement shall be construed to prevent institution of any change prior to discussion with the Union where immediate change is required by the Government. The company will, however, negotiate with the Union concerning the effects of any such change.

SECTION 2. If the Government directs that a specific employee be removed from the contract or otherwise disciplined or reassigned, any such action directed may be undertaken by the Company and shall not be subject to the grievance or arbitration procedures of this Agreement. In the event that the Government expressly directs the removal, discipline or reassignment of a contract employee, the Company agrees to cooperate with the Union by providing it with all relevant information.

SECTION 3. It is recognized and acknowledged that the work performed under this Agreement is being performed at a Government military center, and it is therefore essential and expected that all employees will act in a manner appropriate to such an environment. It is further recognized and acknowledged that the Government imposes specific requirements concerning the manner in which the work under this Agreement is to be performed, and it is essential and expected that all employees comply with such requirements.

ARTICLE XXXI DISCIPLINE

The Union and the Company recognize and agree that the following offenses are examples, though not all inclusive, of serious conduct that constitute just cause for immediate discharge without the need for any prior progressive disciplinary action:

- 1 Calling an unauthorized strike or walkout.

- 2 Being under the influence of alcohol or drugs during working hours; or any refusal to submit to drug and/or alcohol testing or substitution/alteration of specimen.
- 3 Theft, embezzlement, dishonesty, falsification of time sheets, or time cards, government documentation, Payment, acceptance, or offer of a bribe.
- 4 Deliberate refusal of an employee to do a job assignment.
- 5 A serious safety infraction; or other gross negligence (whether safety related or not).
- 6 Government request that Employee be taken off project; or *Abusive language or disrespectful conduct toward the Customer/Government.*
- 7 Fighting or other physical workplace violence or verbal threats of bodily harm or property destruction; or possession of firearms, weapons, or explosives within the facilities; or Willful destruction of Employer or Customer property.
- 8 Violation of the Company's anti-harassment, discrimination, or retaliation policies.
- 9 Sleeping on working time or in working areas.
- 10 Other gross misconduct not mentioned herein but generally accepted as behavior so egregious that it merits immediate discharge.

For other conduct that does not warrant immediate discharge, the Company shall generally apply progressive disciplinary action through a written reprimand, second written reprimand, final warning and/or suspension, and discharge. Disciplinary action does not need to be for the same offense. Probationary employees shall not be able to grieve or arbitrate any disciplinary action or discharge.

ARTICLE XXXII SCOPE OF AGREEMENT

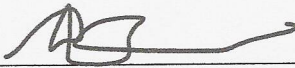
SECTION 1. It is understood and agreed that this Agreement will replace and supersede any and all previous agreements and that it shall be firm on all points covered. No amendments, modifications, changes or interpretive alterations shall be effective unless and until they are executed in writing, dated and signed by authorized representatives of the Union and the Company. It is further understood that past practices which could be interpreted to contradict or modify this Agreement are null and void and the language of the Agreement shall be controlling.

Article XXXIII

This agreement shall be effective October 1st, 2024 and shall remain in full force and effect until 11:59 p.m. on September, 30th, 2027.

FOR NJS JOINT VENTURE LLC:

J&J Worldwide Services

By: 

Printed: Patrick Roddy

Title: EVP Operations

Date: 10/11/2024

Nugate Group LLC

By: 

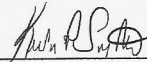
Printed: Jamila Stanford

Title: President

Date: 10/11/2024

FOR THE UNION

**Transport Workers Union of
America, Local 525, AFL-CIO**

By: 

Printed: Kevin Smith

Title: President

Date: 9/30/2024

Addendum “A” (Proposed Wage Scale)

Base wage rates shall be increased as follows:

- Effective April 1, 2025: 4%
- Effective April 1, 2026: 4%
- Effective April 1, 2027: 4%

	Current wage	Effective 4/1/2025 -4%	Effective 4/1/2026 - 4%	Effective 4/1/2027 – 4%
Custodian	\$20.02	\$20.82	\$21.65	\$22.52
Lead	\$20.92	\$21.76	\$22.63	\$23.54
Drivers	\$19.04	\$19.80	\$20.59	\$21.41
Retirement	\$1.31	\$1.36	\$1.41	\$1.47

Stripping Crews (Strippers, waxer’s or buffers shall be paid and additional \$.25 per hour above the applicable wage rates in Addendum “A”.